

Ram Bahadur Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 16 October 2024 · 2024:AHC:164506-DB · Writ - C No. 32271 of 2024 · **Writ disposed; Para 6.5 representation to be decided; recovery in abeyance**

HEADNOTE

Writ against a recovery citation for electricity dues disposed without opinion on merits. Respondent No. 2 is to decide the petitioner's representation dated 09.09.2024, invoked as the Para 6.5 Supply Code, 2005 remedy, by a speaking order within four weeks of communication. If the order is communicated within two weeks, recovery under the citation stays in abeyance until that decision.

FACTUAL SUMMARY

Ram Bahadur Singh challenged a recovery citation dated 23 August 2024 issued by respondent No. 3 for electricity dues. On 25 September 2024 a Division Bench permitted service of notice on respondent No. 2 and listed the writ afresh for 16 October 2024. On that date counsel for the Electricity Department submitted that an objection lay under Para 6.5 of the U.P. Electricity Supply Code, 2005. Counsel for the petitioner stated that a representation had already been filed on 9 September 2024 and asked that it be decided.

HOLDING-UNITS

HOLDING-UNIT · U.P. Electricity Supply Code, 2005, clause 6.5

Pending representation against electricity recovery citation

HOLDING

A writ challenging a recovery citation for electricity dues, where a representation dated 09.09.2024 is already pending, is disposed of without any opinion on merits by directing respondent No. 2 to decide that representation by a speaking order within four weeks of communication of the order. Para 6.5 of the Supply Code, 2005 is the remedy indicated by the Electricity Department. If the petitioner communicates the order within two weeks, recovery under the impugned citation remains in abeyance until the representation is decided. ¶ 2-5

PRINCIPLE TAGS

clause-6.5-pending-representation-to-be-decided The representation dated 09.09.2024 against the recovery citation was directed to be decided by respondent No. 2 by a speaking order within four weeks, with recovery kept in abeyance in the meantime. ¶ 3-5

alternate-remedy-clause-6.5 On the Electricity Department's submission that Para 6.5 of the Supply Code, 2005 was the remedy, the writ was disposed without any opinion on the merits of the dues. ¶ 2-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ELECTRICITY DUES COVERED BY THE RECOVERY CITATION DATED 23.08.2024 WERE CORRECTLY ASSESSED

The Court expressed no opinion on merits and left the representation dated 09.09.2024 to a speaking order. ¶ 4